

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

Case No:

In the matter between:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

Applicant

(Reg: 1988/000570/06)

and

WILBUR WILLIAM MATTHEE

Respondent

NOTICE OF INTENTION TO OPPOSE

**TO: THE REGISTRAR OF THE ABOVE HONOURABLE COURT
AND TO: DENEYS INC, ATTORNEYS FOR THE APPLICANT**

(Email: jason.whyte@deneys.co.za)

KINDLY TAKE NOTICE that:

1. The Respondent, WILBUR WILLIAM MATTHEE, hereby gives notice of his intention to oppose the urgent application brought by the Applicant in the above-captioned matter.
2. The Respondent is a self-represented litigant. His address for service of all further process and documents in this matter is:

15 Bellevue Street
Voorbrug

Cape Town
7001
Email: info@ethichawks.co.za

3. The Respondent will deliver a full Answering Affidavit in due course, in accordance with such timetable as this Honourable Court may determine. The Respondent requests a reasonable opportunity of not less than 48 to 72 hours within which to do so.

4. The Respondent further intends to raise, inter alia, the following points in limine:

4.1 The matter was served on the Respondent at approximately 21:42 on 15 April 2026, less than 16 hours before the scheduled hearing, rendering it impossible for the Respondent to obtain legal representation or prepare a considered response. The urgency, to the extent it exists, is entirely self-created by the Applicant who was aware of the Respondent's forensic findings since at least October 2025. This constitutes an abuse of court process.

4.2 Service did not comply with the requirements of Rule 4 of the Uniform Rules of Court in that the Respondent was not properly served in a manner affording him adequate opportunity to oppose.

4.3 The Applicant has failed to make out a case for urgent relief in accordance with the requirements of Rule 6(12), in particular by relying on urgency that is self-created.

5. The Respondent places the Applicant and this Honourable Court on notice that:

5.1 The settlement demand of R7,307,642.72 is a quantified legal claim for occupational detriment, unlawful salary deductions, and related statutory breaches, which claims are formally before the Labour Court (Case Nos. 2026-077546 and 2026-083299). Seeking settlement of a legitimate and pending legal claim does not constitute extortion under South African law.

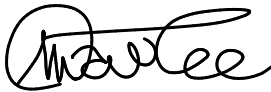
5.2 The Respondent's disclosures constitute Protected Disclosures within the meaning of the Protected Disclosures Act 26 of 2000 ("PDA") and concern systemic clinical and financial governance failures affecting 1.9 million GEMS beneficiaries.

5.3 The Respondent denies that any intended disclosure involves or requires the release of individual patient medical records or "special personal information" as defined in section 26 of the Protection of Personal Information Act 4 of 2013 ("POPIA"). The disclosure pertains to systemic integration architecture failures between the Gexus and DMS platforms, actuarial miscalculations, and governance failures — all matters of public interest.

WHEREFORE the Respondent respectfully requests this Honourable Court to:

- (a) Postpone the hearing of the urgent application for a period of not less than 48 to 72 hours to enable the Respondent to obtain legal representation and to prepare and deliver a full Answering Affidavit;
- (b) In the alternative, strike the application from the urgent roll on the grounds of self-created urgency and/or abuse of process; and
- (c) Grant any further and/or alternative relief as this Honourable Court deems fit.

DATED AT CAPE TOWN ON THIS 16 DAY OF APRIL 2026



WILBUR WILLIAM MATTHEE

Respondent (Self-Represented)

15 Bellevue Street, Voorbrug, Cape Town, 7001

Email: info@ethichawks.co.za

TO: THE REGISTRAR

Western Cape Division, Cape Town

TO: DENEYS INC

Attorneys for the Applicant

9th Floor, 117 Strand Street, Cape Town, 8001

Email: jason.whyte@deney.co.za